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Tathya Patel approaches High Court, apprehends detention orders under PASA

Tathya Patel was allegedly driving the speeding Jaguar that killed nine people, and injured 13 others in July at the SG Highway in Ahmedabad.

By: [Express News Service](#)

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Tathya Patel was arrested in July after the car he was driving killed nine persons in an accident. File

The Gujarat High Court on Wednesday issued a notice to the state after a petition was moved by the accused in the ISKCON flyover accident case, apprehending the issuance of detention orders under the stringent Gujarat Prevention of Anti-Social Activities (PASA) Act.

Tathya Patel was allegedly driving the speeding Jaguar that killed nine people, and injured 13 others in July at the SG Highway in [Ahmedabad](#).

A division bench of Justices AY Kogje and RM Sareen kept the notice over his petition returnable for November 1. The state is expected to respond to the

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contentions raised in the petition.

With three offences pertaining to rash driving registered against the 20-year-old, the petitioner submitted that he was apprehending detention orders against him under the Gujarat PAsA Act and is seeking the court's orders to the authorities that they should be prevented from passing any such order against him.

Represented by advocate Harshad Prajapati, the accused submitted that he was already in judicial custody and that his driving licence was already cancelled. There won't be any question of rash driving or committing any similar offence, the petition insisted.



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Tathya and his father Pragnesh Patel (44), have been charged under sections 279 (rash driving), 337 and 338 (hurt and grievous hurt caused by rash and negligent act), 304 (culpable homicide not amounting to murder), 308 (attempt to commit culpable homicide), 504 (intentional insult with intent to provoke breach of peace), 506 (2) (criminal intimidation), 114 (abetment) and 188 (disobedience to order promulgated by public servant) of the Indian Penal Code (IPC).

They have also been charged under sections 177 (breaking traffic laws), 184 (dangerous driving) and 134 (b) (duty of driver in case of accident and injury to a person) of the Motor Vehicle Act, in relation to the SG Highway accident.

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Additionally, there is also an **FIR** against Tathya before the Santej police station, where he is booked for offences under

IPC sections 279 (rash driving), 427 (committing mischief causing monetary loss) and under provisions of the Motor Vehicle Act.

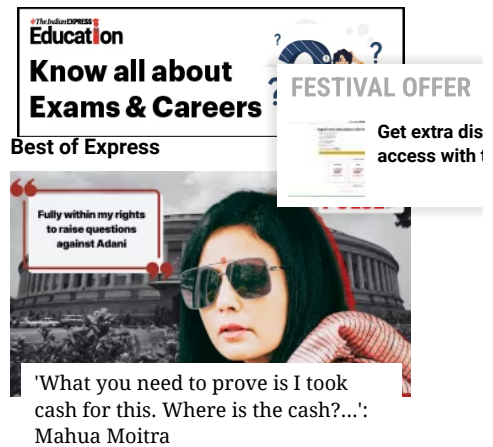
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While the offence had occurred prior to the SG Highway accident, where Tathya had allegedly rammed a car into a temple pillar, the FIR was lodged only after the SG Highway accident by the police.

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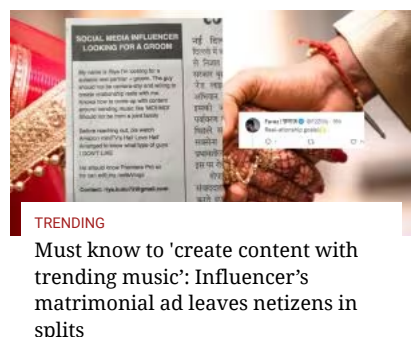
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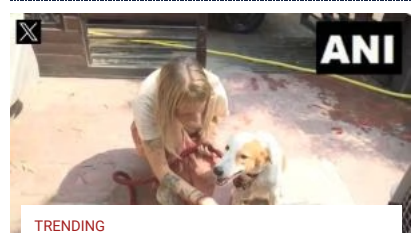
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owing to paucity of time and has now been kept next for October 25.

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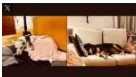
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